

It is now almost eight months after the time Defendant filed its answer to the complaint.

Upon the general appearance of a defendant in a case, a plaintiff is authorized to conduct most types of discovery. See, e.g., C.C.P. §2025.210(b) [deposition notice can be served by a plaintiff on a defendant 20 days after completion of service, or when the defendant has appeared in the action, whichever occurs first]; §2030.020(b) [a plaintiff can propound interrogatories on a defendant 10 days after completion of service, or when the defendant has appeared in the action, whichever occurs first]; §2031.020(b) [same general appearance or 10 days after service threshold for propounding requests for production]; §2033.020(b) [same for propounding requests for admissions].

At this stage of the case, there would appear to be little excuse for a plaintiff not to have conducted the discovery necessary to properly allege the act at issue was made, authorized or ratified by a corporate officer, director, or managing agent who can be identified by name and/or title, if such facts exist. Any amended complaint failing to include such allegations would appear susceptible to a properly noticed and filed motion to strike by a corporate defendant.

TERCIERA HARGROVE v. ELISE SINDLINGER, ET AL.
Case No. CU26-01629

SINDLINGER's Demurrer

TENTATIVE RULING

Moving party to appear. The notice of motion fails to include notice of the court's tentative ruling system as required by Local Rule 3.9.

Defendant ELISE SINDLINGER demurs to Plaintiff TERCIERA HARGROVE's first amended complaint alleging breach of contract.

The court has not received opposition to the demurrer.

Legal Standard on Demurrer. "The function of a demurrer is to test the sufficiency of the complaint as a matter of law." (*Holiday Matinee, Inc. v. Rambus, Inc.* (2004) 118 Cal.App.4th 1413, 1420.) A complaint must allege facts sufficient to establish every element of each cause of action. (*Rakestraw v. California Physicians' Service* (2000) 81 Cal.App.4th 39, 43.) A complaint is sufficient if it alleges ultimate rather than evidentiary facts, but the plaintiff must set forth the essential facts of his or her case "with reasonable precision and with particularity sufficient to acquaint [the] defendant with the nature, source and extent" of the plaintiff's claim. (*Doheny Park Terrace Homeowners Assn., Inc. v. Truck Ins. Exchange* (2005) 132 Cal.App.4th 1076, 1099.) Legal conclusions are insufficient. (*Id.* at 1098–1099; *Doe v. City of Los Angeles* (2007) 42 Cal.4th 531, 551, fn. 5 [ultimate facts sufficient].) The Court "assume[s] the truth of the allegations in the complaint, but do[es] not assume the truth of contentions, deductions, or conclusions of law." (*California Logistics, Inc. v. State of California* (2008) 161 Cal.App.4th 242, 247.)

Breach of Contract. The elements of a cause of action for breach of contract are (1) the existence of a valid contract, (2) the plaintiff's performance or excuse for nonperformance, (3) breach, and (4) damages. (*Stockton Mortgage, Inc. v. Tope* (2014) 233 Cal.App.4th 437, 447.)

The operative pleading does not allege the existence of a contract between Plaintiff and SIDLINGER. It alleges Plaintiff rented an apartment, but does not detail from whom, or on what terms. The operative pleading therefore does not allege in what way SINDLINGER breached a contract between the parties and thereby caused Plaintiff harm.

Leave to Amend. Leave to amend is proper where identified defects are amenable to cure. (*Vaccaro v. Kaiman* (1998) 63 Cal.App.4th 761, 768.) Plaintiff has not filed opposition and so has not demonstrated how identified defects might be cured by amendment.

Conclusion. SINDLINGER's unopposed demurrer is sustained without leave to amend.

WALKER v. DOE, ET AL.
Case No. CU26-06540

Motion for Preliminary Injunction

TENTATIVE RULING

Plaintiff's motion for a preliminary injunction is denied.

"No preliminary injunction shall be granted without notice to the opposing party." (Code Civ. Proc. § 527(a).) Notice had to be given by serving a noticed motion pursuant to Code of Civil Procedure section 1005. (Cal. Rules of Court, rule 3.1150(a); *JHVS Group, LLC v. Slate* (2024) 107 Cal.App.5th 30, 37.) The noticed motion had to be served on defendants at least 16 court days prior to the hearing. (Code Civ. Proc. § 1005(b).)

Plaintiff failed to serve any defendant with the motion papers. Proof of service of the motion papers had to be filed no later than five court days prior to the hearing. (Cal. Rules of Court, rule 3.1300(c).)

Department 8 is inviting you to a scheduled ZoomGov meeting.

<https://solano-courts-ca.gov.zoomgov.com/j/1619704645?pwd=aUwyYUFUcU5Eazl6SEkrcmcrRnRLUT09>